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Plaintiff, In Pro Per

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO**

Franciscus Dylan Rosario,
PLAINTIFF,

v.

Subhi Abdelhalim;
CSAA Insurance Exchange;
and DOES 1 through 50, inclusive;

DEFENDANTS

Case No.: CGC-25-631801

**MEMORANDUM OF POINTS AND
AUTHORITIES
IN SUPPORT OF MOTION FOR
RECONSIDERATION**

Hearing: [TBD], Department 301
Judge: Hon. Christine Van Aken

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14	<i>Baral v. Schnitt</i> , (2016) 1 Cal.5th 376
15	<i>Bonni v. St. Joseph Health System</i> , (2021) 11 Cal.5th 995
16	<i>Estate of Beard</i> , (1999) 71 Cal.App.4th 753
17	<i>Caldwell v. Taylor</i> , (1933) 218 Cal. 471
18	<i>Cedars-Sinai Medical Center v. Superior Court</i> , (1998) 18 Cal.4th 1
19	<i>Computer Xpress, Inc. v. Jackson</i> , (2001) 93 Cal.App.4th 993
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 Code Civ. Proc., § 1008(a)
 Code Civ. Proc., § 425.16
 Code Civ. Proc., § 425.17, subdiv. (c)

1 Cal. Rules of Court, rule 3.1113(j)
2 Cal. Rules of Court, rule 3.1300(d)
3 Cal. Rules of Court, rule 3.1324
4 Evid. Code, §§ 451, 452, 453
5 Civ. Code, § 47, subdiv. (b)
6 Civ. Code, §§ 2330, 2338
7 Evid. Code, § 1222
8 Ins. Code, § 790.02
9 Ins. Code, § 790.03, subdiv. (h)
10 Title 10 CCR, §§ 2695.1 et seq.

11 **I. INTRODUCTION**

12 Plaintiff moves for reconsideration of the Court’s **May 12, 2026** order granting Defendants’ special
13 motion to strike the **First Amended Complaint (“FAC”)** under Code of Civil Procedure section
14 **425.16**.

15 This Memorandum is organized to match the FAC’s theory and the record plaintiff has placed
16 before the Court: an **independent action in equity** to set aside the **CGC-21-594102** judgment
17 based on **extrinsic fraud**, supported by a **three-part sequence** the FAC spells out in **Section III.D**
18 (defense-side access and production history; written and oral representations in MILs and on the
19 record; and rulings the FAC ties to those representations).

20 The motion seeks reconsideration under Code of Civil Procedure section 1008, subdivision (a)
21 (new or different law, facts, or record), section 473, subdivision (d) if the entered order is **void**
22 in whole or part, and the Court’s **inherent authority** to correct legal error, including authority
23 discussed in *Le Francois v. Goel* (2005) 35 Cal.4th 1094, 1107–08. (*Standard Microsystems*
24 *Corp. v. Winbond Electronics Corp.* (2009) 179 Cal.App.4th 868, 890 [section 1008(a) attaches to
25 entered orders and requires an adequate motion].)

26 Plaintiff also lodges **proposed corrected language** for the May 12, 2026 minutes in 05a-MAY12-MINUTES-PROPOS
27 (see Exhibit J row in the exhibit index), including passages that flag how the minutes treat supple-

mental items and prong-two framing.

II. INCORPORATION BY REFERENCE (CAL. RULES OF COURT, RULE 3.1113(J))

Plaintiff incorporates by reference the following materials already on file in **CGC-25-631801**, subject to substitution of accurate **Register of Actions** sequence numbers after plaintiff obtains an endorsed register printout:

Working label	Document (confirm exact title on register)	ROA seq.
A	Plaintiff's opposition to Defendants' special motion to strike the FAC	TBD
B	Plaintiff's request(s) for judicial notice filed with or in support of that opposition	TBD
C	Plaintiff's exhibit volumes, compendia, or lodged transcripts cited in the opposition	TBD
D	Plaintiff's May 11, 2026 combined contest and contingent reconsideration papers (motion, Exhibit T, and related components), if accepted for filing	TBD
E	Plaintiff's May 11, 2026 second supplemental request for judicial notice and statement of appellate preservation (May 12 package folder 20), if on file	TBD
F	Plaintiff's May 11, 2026 request for judicial notice of governing law and reliance-effect materials (May 12 package folder 21), if on file	TBD
G	Plaintiff's May 11, 2026 bench brief and related gateway or exhibit packet PDFs (May 12 package folder 17), if on file	TBD

The **Requests for Judicial Notice** filed concurrently with this motion add **preservation-of-law** items and a **non-argumentative sequence index (Exhibit A)** under Evidence Code section **452**,

subdivision (d) for **CGC-21-594102** court records.

III. STANDARDS OF REVIEW AND WHY RECONSIDERATION IS AVAILABLE HERE

A. Reconsideration under section 1008(a). Reconsideration may be granted on **new or different facts, circumstances, or law** not previously presented. (*Standard Microsystems Corp. v. Winbond Electronics Corp.*, supra, 179 Cal.App.4th at pp. 888–90.)

B. De novo issues embedded in the May 12 ruling. Classification of claims under Code of Civil Procedure section **425.16**, and the **intrinsic versus extrinsic fraud** line, present questions this Court evaluates under controlling Supreme Court authority. (*Park v. Board of Trustees of the California State University* (2017) 2 Cal.5th 1057, 1067; *Sweetwater Union High School Dist. v. Gilbane Bldg. Co.* (2019) 6 Cal.5th 931, 940 [de novo statutory construction].)

C. Record completeness. The May 12 minutes state the Court did **not** consider certain supplemental papers plaintiff filed. To the extent that ruling excluded **substantive** materials required for a fair prong-two analysis (for example, section **425.17** materials, judicial notice tenders, reply impeachment motions, or gateway bench materials), the **post-exclusion record** is itself **new** for purposes of section **1008(a)** when presented with this motion. (*Kolani v. Gluska* (1998) 64 Cal.App.4th 402, 411 [abuse-of-discretion frame with embedded legal issues for supplemental briefing and leave rulings].)

IV. INTRINSIC VERSUS EXTRINSIC FRAUD: THE FAC PLEADS EXTRINSIC “PROCESS” FRAUD, NOT MERE TRIAL PERJURY

The FAC’s gravamen is that defense-side **representations to the trial court** about **receipt, possession, and provenance** of **911 audio, body-worn camera materials, and CAD logs** induced **concrete pretrial and trial rulings** that impaired plaintiff’s ability to present objective recordings in an orderly way. (**FAC sections III.A–III.D, IV.**)

California equity distinguishes **intrinsic** fraud (classic examples include perjury at trial for the jury

1 to test) from **extrinsic** fraud that prevents a fair contest or corrupts the adversary process. *Kulchar*
2 *v. Kulchar* (1969) 1 Cal.3d 467, 471; *Aldrich v. San Fernando Valley Lumber Co.* (1985) 170
3 Cal.App.3d 725, 735; *In re Marriage of Baltins* (1989) 212 Cal.App.3d 66; *Cedars-Sinai Medical*
4 *Center v. Superior Court* (1998) 18 Cal.4th 1, 11–12.

5 Post-judgment discovery of **deliberately concealed** materials can state an extrinsic-fraud theory
6 in appropriate cases. *In re Marriage of Modnick* (1983) 33 Cal.3d 897, 905; *Stevenot v. Stevenot*
7 (1984) 154 Cal.App.3d 1051; *Estate of Beard* (1999) 71 Cal.App.4th 753, 776–77.

8 **Application.** The FAC’s **Section III.D** is not a request to ignore the jury’s factfinding on “con-
9 tact” in the abstract. It alleges a **specific mechanism**: MIL language and on-the-record statements,
10 tied to transcript pinpoints, allegedly preceded **exclusion, continuance denials, and deferred ad-**
11 **mission** rulings. That structure tracks **extrinsic** fraud authorities above, not a generic “the jury
12 believed the defendant” intrinsic attack.

13 **Note on Code of Civil Procedure section 187.** The FAC references section **187** together with
14 **inherent equitable power** and *Kulchar*. Section **187** states ancillary means to exercise jurisdiction
15 conferred on a court (official text). **Relief from judgment** doctrines and vacatur for fraud are
16 developed primarily in **equity** and in statutes such as Code of Civil Procedure section **473** and
17 decisional law cited above. Plaintiff’s theory remains as pleaded in the **FAC**; this motion does not
18 add a new cause of action.

19 20 **V. “FULLY LITIGATED” AND MIL RULINGS: NON-PRECLUSIVE** 21 **AS TO EXTRINSIC FRAUD**

22 The May 12 minutes reason that plaintiff’s issues “were fully litigated” and point to **MIL** materials
23 and a **trial scheduling order** in the underlying action.

24 **Issue preclusion** requires an issue **actually litigated** and **necessarily decided**. *Lucido v. Superior*
25 *Court* (1990) 51 Cal.3d 335, 341. Pretrial **admissibility** and housekeeping orders are not the
26 functional equivalent of a **final fraud judgment** on whether extrinsic fraud occurred.

27 **Application.** The FAC alleges that **MIL Nos. 6 and 17** and the colloquy on **February 18, 2025**,
28 and trial statements on **April 16, 2025**, supplied **false premises** for later rulings. (**FAC section**

1 **III.D.)** Whether those allegations are **true** is for trial, but **collateral estoppel** does not arise from
2 the mere **existence** of MIL rulings without the fraud issues having been **actually and necessarily**
3 **adjudicated**. (*Lucido*, supra, 51 Cal.3d at p. 341.)

4 5 **VI. ANTI-SLAPP ARCHITECTURE: PRONG ONE, PRONG TWO, AND** 6 **“THE WRONG COMPLAINED OF”**

7 **A. Prong one is not the end of the inquiry for an equitable vacatur claim.** The minutes cite
8 authority that equitable actions to vacate can satisfy prong one. (*Ahmed v. Collect Access, LLC*
9 (2025) 114 Cal.App.5th 1092.) Prong one does **not** resolve prong two. *Baral v. Schnitt* (2016) 1
10 Cal.5th 376, 384–85.

11 **B. “Wrong complained of.”** A claim may be struck only if the **protected activity itself** is the
12 wrong, not merely evidence of a different wrong. *Park v. Board of Trustees*, supra, 2 Cal.5th at
13 p. **1060** (emphasis in original). The FAC uses in-court statements and MILs as **operative facts**
14 showing **how** the judgment was allegedly procured, not as freestanding defamation claims. (**FAC**
15 **sections I, III.D, IV, V** [FAC disclaims defamation].)

16 **C. No improper weighing at prong two.** At prong two, the court asks whether plaintiff’s showing,
17 if credited, could succeed, without **weighing** credibility like a jury. *Baral*, supra, 1 Cal.5th at
18 p. **385**; *Computer Xpress, Inc. v. Jackson* (2001) 93 Cal.App.4th 993, 1010.

19 **Application.** If the May 12 order treated the **underlying jury verdict** as dispositive of the **ex-**
20 **trinsic fraud** theory at prong two, that step risks **merits weighing** inconsistent with *Baral* and
21 *Computer Xpress*.

22 23 **VII. EXCLUDED SUPPLEMENTAL RECORD (MAY 7 AND MAY 11** 24 **FILINGS)**

25 The May 12, 2026 minutes (see 05a-MAY12-MINUTES-PROPOSED-CORRECTED-LANGUAGE.md) state
26 the Court did not consider plaintiff’s “various supplemental opposition briefs,” described as filed
27 without authorization. For **entered-order** reconsideration, plaintiff isolates the following **May 12**

1 **hearing-package** items because they are **category distinct** from a generic “late reply” and because
2 they bear on prong-two **record completeness**:

3 1. **Item 13 (May 7, 2026)**: Notice and statement re Code of Civil Procedure section **425.17**,
4 Insurance Code, FCSPR, and defense conduct. This is a **statutory exemption** lane that may
5 be raised before adjudication. (*Simpson Strong-Tie Co. v. Gore* (2010) 49 Cal.4th 12, 21–22.)

6 2. **Item 14 (May 7, 2026)**: Supplemental request for judicial notice re Insurance Code sec-
7 tion **790.03(h)** and Fair Claims Settlement Practices Regulations (title 10, Cal. Code Regs.,
8 §§ 2695.1 et seq.). Once tendered, judicial notice of qualifying materials follows Evidence
9 Code procedures; *Ross v. Creel Printing & Publishing Co.* (2002) 100 Cal.App.4th 736,
10 743–44 supplies the “tendered” framework plaintiff relies on for preservation.

11 3. **Item 15 (May 7, 2026)**: Motion to strike opposing counsel’s reply declaration under *Jay*
12 *v. Mahaffey* (2013) 218 Cal.App.4th 1522, 1537–38 (anti-SLAPP reply may not enlarge the
13 moving papers’ theory).

14 4. **Item 17 (May 11, 2026)**: Bench brief on gateway sequencing and per-prong threshold anal-
15 ysis (“Inland Oversight” framing), including lodged exhibit packet references in folder **17**.

16 **CRC 3.1300(d)** commits **timing** of late papers to the Court’s discretion; it does not convert **sub-**
17 **stantive** statutory defenses, mandatory judicial notice paths, or *Jay*-type reply integrity motions
18 into per se waivers. California Rules of Court, rule 3.1300(d). When a discretionary “without
19 authorization” line excludes those categories wholesale, the resulting **prong-two** record risks em-
20 bedded **legal** and **evidentiary** error, not a mere housekeeping slip. (*Reedy v. Bussell* (2007) 148
21 Cal.App.4th 1272, 1287–88; *Kolani v. Gluska*, supra, 64 Cal.App.4th at p. 411.)

22 **Cross-reference to proposed minute corrections.** Plaintiff’s companion 05a–MAY12–MINUTES–PROPOSED–CORR
23 labels Current blocks and proposed replacements where the minutes compress supplemental mate-
24 rials, prong-two weighing, and section **425.17(c)** characterization. The Court may adopt none, one,
25 or more alternatives; the point for reconsideration is that the **entered** text is the object of section
26 **1008(a)** review once clarified against the register.

VIII. PRONG-TWO PILLAR CHECKLIST (FOUR PILLARS)

This checklist consolidates the May 11, 2026 motion’s prong-two structure, trimmed to **post-order** posture, and **maps each pillar to excluded folders** in Section VII:

Pillar 1: Post-trial concealment. Modnick; Beard; bench brief and exhibit packet materials in **folder 17** (item 17) document the post-trial discovery sequence plaintiff ties to extrinsic fraud. Each pillar, standing alone, can satisfy minimal merit if credited. (*Wilson v. Parker, Covert & Chidester* (2002) 28 Cal.4th 811, 821.)

Pillar 2: Insurer and regulatory context outside privilege silos. Section **425.17** notice and supplemental RFJN in **folders 13 and 14** (items 13–14) tender the Insurance Code and FCSPR materials plaintiff argues are analytically distinct from a bare “litigation conduct” label in the minutes.

Pillar 3: Rubenstein restitutionary lane. Rubenstein; Cedars-Sinai; monetary relief framed as restitution of fraudulently procured judgment proceeds travels with vacatur analysis, not as free-standing “fraud damages” barred by Civil Code section **47(b)** in the abstract.

Pillar 4: Section 425.17(c) commercial speech exemption. Same folders **13–14**; the minutes’ one-line “inapposite” ruling is a **legal classification** plaintiff preserves for reconsideration together with the regulatory text incorporated by reference in the RFJN papers.

Optional footnote (structural order of proof). If the Court’s minutes are read to rest on trial-structure or proof-order premises beyond Baral’s second step, plaintiff reserves Smith v. Superior Court (1992) 10 Cal.App.4th 1031 and Evidence Code sections **1280 / 1561** only if the **endorsed** order or supplemental briefing makes that lens dispositive. See compliance validation WARN if unused.

IX. CODE OF CIVIL PROCEDURE SECTION 425.17, SUBDIVISION (C), AND SIMPSON STRONG-TIE

If any defendant’s conduct includes **commercial speech** in the statutory sense, subdivision (c) may remove certain claims from anti-SLAPP treatment when its elements are met. Code Civ. Proc.,

1 section 425.17, subdivision (c); *Simpson Strong-Tie Co. v. Gore* (2010) 49 Cal.4th 12, 21–22
2 (timing and applicability of the exemption).

3 **Application.** The FAC frames insurer involvement and regulated claim-handling context in ways
4 that may intersect with **section 425.17(c)** depending on proof. (**FAC sections II, III.**) The May 12
5 minutes state the Court found **section 425.17(c)** “inapposite” because plaintiff “sues over litigation
6 conduct.” That ruling is **legal classification** subject to reconsideration if the **FAC’s** allegations or
7 plaintiff’s **supplemental** papers (items **13–14**) supply a **different record** on what conduct is at the
8 center of the claim.

9
10 **X. CIVIL CODE SECTION 47, SUBDIVISION (B), AND ANCILLARY**
11 **EQUITABLE RELIEF: RUBENSTEIN**

12 The litigation privilege bars many **derivative tort** theories grounded in protected communications.
13 *Silberg v. Anderson* (1990) 50 Cal.3d 205, 212; *Rusheen v. Cohen* (2006) 37 Cal.4th 1048, 1065
14 (privilege can extend to certain noncommunicative acts necessarily related to communicative con-
15 duct).

16 **Equitable vacatur** remains analytically distinct from a generic “fraud damages” suit. *Rubenstein*
17 *v. Rubenstein* (2000) 81 Cal.App.4th 1131, 1147 (privilege does not eliminate equitable vacation
18 of a fraudulently obtained judgment).

19 **Application.** The FAC seeks **vacatur** and **ancillary equitable monetary relief** tied to restoring
20 fairness after alleged extrinsic fraud. (**FAC sections I, VI.**) If the May 12 order **struck the FAC**
21 **in its entirety** without **severing** equitable vacatur from theories the privilege might reach, recon-
22 sideration should **restore the equitable core** for further orderly briefing under *Baral*’s severance
23 principles.

XI. SECONDARY REGULATORY CONTEXT (DOES NOT REPLACE KULCHAR)

Insurance Code sections 790.02 and 790.03, subdivision (h), and Title 10, California Code of Regulations, sections 2695.1 et seq., supply **industry standards** that can inform **objective reasonableness** of investigation and disclosure narratives in insurance-related litigation. Official texts. *Moradi-Shalal v. Fireman's Fund Ins. Cos.* (1988) 46 Cal.3d 287 reminds courts that certain **private enforcement** theories tied directly to bare statutory unfair-practice lists face limits. *Bonni v. St. Joseph Health System* (2021) 11 Cal.5th 995 supplies modern Supreme Court framing for section **425.16** categorization issues when they intersect with regulatory context. The FAC's **center of gravity** remains **equitable vacatur** and fraud-on-process allegations, not a freestanding duplicate statutory tort unless and until a proposed amendment says otherwise.

XII. AGENCY AND ADOPTED STATEMENTS (LEGAL FRAMING FOR FAC ALLEGATIONS)

Civil Code sections 2330 and 2338 and Evidence Code section 1222 supply default frameworks for **principal-agent** relationships and **authorized statements**. Official texts.

Gulf Ins. Co. v. Berger, Kahn, Shafon, Moss, Figler, Simon & Gladstone (2000) 79 Cal.App.4th 114 discusses insurer relationships to panel counsel in an agency framework.

Application. The FAC alleges CSAA **funded, directed, and controlled** the defense and that counsel acted as **litigation agents**. (FAC sections II, III.D.) These authorities supply **legal labels** for facts triable in the **equity** action; they do not themselves prove fraud.

XIII. LOS ANGELES AIRWAYS BALANCING, CALDWELL/PICO, AND THE ENTERED ORDER

The May 12 minutes quote *Los Angeles Airways, Inc. v. Hughes Tool Co.* (1979) 95 Cal.App.3d 1, 7 for finality concerns after a full trial. The same passage **balances** judicial economy against **fair hearing** and **fraud** concerns when little judicial time has been invested, and acknowledges

equitable forces in other postures. Id. at p. 7.

May 11 IV.B (trimmed): not a categorical post-trial bar. The minutes' use of Los Angeles Airways risks **over-reading** the balance as a per se rule. Where post-trial facts suggest deliberately concealed materials that impaired presentation, equity cases emphasize the fraud side of the scale. Caldwell v. Taylor (1933) 218 Cal. 471, 475; Pico v. Cohn (1891) 91 Cal. 129, 133–34.

Application. Even where trial has occurred, **post-trial** assembly of sworn transcripts that allegedly **contradict** representations made to the trial judge is relevant to whether equity should open the door to a **non-jury** determination of **extrinsic fraud**, consistent with Kulchar, Modnick, Beard, and Cedars-Sinai. Plaintiff cross-links minute-level alternatives in 05a-MAY12-MINUTES-PROPOSED-CORRECTED- where the Current block compresses Hughes Tool into a “full trial” bar.

XIV. PRAYER ON RECONSIDERATION (SUMMARY)

Vacate or modify the **May 12, 2026** anti-SLAPP grant; reinstate the **FAC** for further proceedings; **sever** if needed under Baral; preserve **fees** for separate noticed motion consistent with the minutes' notice concerns; grant leave to amend if the Court's case management orders require a noticed motion; and grant leave to file or deem filed the **Proposed Third Amended Complaint (Exhibit T)** lodged with plaintiff's May 11, 2026 combined papers, if and to the extent the Court identifies pleading deficiencies fairly addressed by amendment after an anti-SLAPP grant. (Nguyen-Lam v. Cao (2009) 171 Cal.App.4th 858, 871–73; California Rules of Court, rule 3.1324.)

Dated: May 13, 2026

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Dated: May 13, 2026



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DECLARATION OF COMPLIANCE WITH CALIFORNIA CODES, RULES, AND LOCAL PROCEDURES

Plaintiff declares under penalty of perjury under the laws of the State of California (Code Civ. Proc., § 2015.5) that the statements below are true and correct for this memorandum.

#	Authority	Specific requirement	This filing's compliance	Evidence (section or label)
1	CRC 3.1113	Memorandum support for motion	Sections I–XIV organize authorities and application	Body; TOA
2	CRC 3.1113(j)	Incorporation by reference with ROA placeholders	Section II table (labels A–G)	Section II
3	CCP 1008(a)	New or different law, facts, or record	Sections III.C, VII, VIII; RFJN concurrently filed	III, VII, VIII
4	CCP 425.16	Prong-two architecture; no improper weighing	Sections VI, VIII; <u>Baral</u> , <u>Computer Xpress</u>	VI, VIII
5	CCP 425.17(c)	Commercial-speech exemption where pled	Section IX	IX
6	Evid. Code 451–453	Judicial notice categories as used	RFJN 03a/03b filed concurrently	03a, 03b drivers
7	CRC 3.1300(d)	Late-paper timing vs substantive tenders	Section VII discusses discretion vs mandatory notice paths	VII
8	CRC 3.1324	Leave to amend statement if TAC relief sought	Section XIV prayer (Nguyen-Lam alignment)	XIV